

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MARSHA SIBBLIES,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. ANTONIO
PAPALLO, P.O. JOHN CASAZZA, LT. WILLIAM
TAYLOR, SGT. LAWRENCE DONNEL, AND
“JOHN DOES 1-5,”

Defendants.

Index No.:

Purchased On:

Plaintiff designates
the County of Bronx
as the place of trial

The basis of the venue is
place of occurrence

SUMMONS

----- X

To the above named Defendants

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff’s Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: Mineola, New York
March 26, 2017

FINZ & FINZ, P.C.

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

MARSHA SIBBLIES,

Plaintiff,

vs.

THE CITY OF NEW YORK, P.O. ANTONIO
PAPALLO, P.O. JOHN CASAZZA, LT. WILLIAM
TAYLOR, SGT. LAWRENCE DONNEL, AND
“JOHN DOES 1-5,”

Defendants.

Index No.:

VERIFIED COMPLAINT

JURY TRIAL REQUESTED

Plaintiff, by her attorneys, FINZ & FINZ, P.C., complaining of Defendants, alleges as follows,
upon information and belief:

PRELIMINARY STATEMENT

1. Plaintiff brings this action for compensatory damages, punitive damages, and attorney’s fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violation of her civil rights under 42 U.S.C. § 1983 and the First, Fourth, and Fourteenth Amendments to the United States Constitution. Plaintiff also asserts claims under New York law.

JURY TRIAL DEMANDED

2. Plaintiff demands trial by jury of all issues properly triable thereby.

VENUE

3. Venue is proper for the Supreme Court, County of Bronx, pursuant to CPLR §

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504(3).

THE PARTIES

4. Plaintiff MARSHA SIBBLIES is a United States citizen and a citizen of the City and State of New York.

5. That at all times herein mentioned, defendant CITY OF NEW YORK (hereinafter "CITY") was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

6. That at all times herein mentioned, defendant CITY operated, controlled and maintained a police force known as the New York Police Department ("hereinafter "NYPD").

7. That at all times herein mentioned, defendant P.O. ANTONIO PAPALLO (hereinafter, "PAPALLO") was and is an NYPD officer employed by defendant CITY.

8. That at all times herein mentioned, defendant PAPALLO was acting within the course and scope of his employment with defendant CITY.

9. That at all times herein mentioned, defendant PAPALLO was acting under color of state law.

10. Defendant PAPALLO is sued herein in both his individual and official capacities.

11. That at all times herein mentioned, defendant P.O. JOHN CASAZZA (hereinafter, "CASAZZA") was and is an NYPD officer employed by defendant CITY.

12. That at all times herein mentioned, defendant CASAZZA was acting within the course and scope of his employment with defendant CITY.

13. That at all times herein mentioned, defendant CASAZZA was acting under color of state law.

VERIFIED COMPLAINT - 2

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2 14. That defendant CASAZZA is sued herein in both his individual and official
3 capacities.

4 15. That at all times herein mentioned, defendant LT. WILLIAM TAYLOR
(hereinafter, "TAYLOR") was and is an NYPD officer employed by defendant CITY.

5 16. That at all times herein mentioned, defendant TAYLOR was acting within the
6 course and scope of his employment with defendant CITY.

7 17. That at all times herein mentioned, defendant TAYLOR was acting under color of
8 state law.

9 18. Defendant TAYLOR is sued herein in both his individual and official capacities.

10 19. That at all times herein mentioned, defendant SGT. LAWRENCE DONNEL
(hereinafter, "DONNEL") was and is an NYPD officer employed by defendant CITY.

11 20. That at all times herein mentioned, defendant DONNEL was acting within the
12 course and scope of his employment with defendant CITY.

13 21. That at all times herein mentioned, defendant DONNEL was acting under color of
14 state law.

15 22. Defendant DONNEL is sued herein in both his individual and official capacities.

16 23. That at all times herein mentioned, defendants JOHN DOES 1 through 5 were and
are NYPD officers employed by defendant CITY.

17 24. That at all times herein mentioned, defendants JOHN DOES 1 through 5 were
18 acting within the course and scope of their employment with defendant CITY.

19 25. That at all times herein mentioned, defendants JOHN DOES 1 through 5 were
20 acting under color of state law.

VERIFIED COMPLAINT - 3

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2 26. The names "JOHN DOES 1 through 5" are fictitious, as these defendants' true
3 names are presently unknown.

4 27. These defendants are intended to be the law enforcement personnel involved in
5 the stop, detention, assault, battery, searches, arrest, imprisonment, and prosecution of plaintiff,
6 as well as the impounding and forfeiture of her personal property.

7 28. That defendants JOHN DOES 1 through 5 are sued herein in both their individual
8 and official capacities.

9 29. That at all times herein mentioned, defendant CITY was under an obligation to use
10 reasonable care in the hiring, training, retention, and supervision of its employees, including,
11 without limitation, defendants PAPALLO, CASAZZA, TAYLOR, DONNEL and JOHN DOES
12 1-5 .

13 30. At all relevant times herein, the individual defendants acted jointly and in concert
14 with each other.

15 31. Each individual defendant had the duty and the opportunity to protect plaintiff
16 from the unlawful actions of the other individual defendants, but each individual defendant failed
17 and refused to perform such duty, thereby proximately causing plaintiff's injuries.

18 **JOINT AND SEVERAL LIABILITY**

19 32. That all of the causes of action pleaded herein fall within one or more of the
20 exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and
several liability.

STATEMENT OF FACTS

33. The facts stated in this complaint are based, inter alia, on the personal knowledge

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2 of plaintiff regarding events in which she was directly involved and upon information and belief.
3 The sources of “information and belief” factual statements are primarily documents from the
4 underlying criminal prosecution and related public documents which are currently available to
5 plaintiff. Those sources are incomplete, particularly, without limitation, as to numerous
6 documents and court exhibits. This complaint is drawn without the benefit of full discovery
proceedings.

7 34. Plaintiff repeats and realleges each and every allegation set forth above as though
8 fully set forth at length herein.

9 35. On November 27, 2006 at approximately 5:50 p.m., plaintiff, who is African-
10 American and a decorated military veteran, was driving home from the Bronx Veterans Hospital
on Kingsbridge Road in the Bronx.

11 36. Plaintiff’s car was a silver 2001 Jaguar S-Type.

12 37. Plaintiff was driving in the left lane of the two lanes of traffic on Bailey Avenue in
13 the Bronx heading toward 230th Street, where the on-ramp to the Major Deegan Expressway was
located.

14 38. Plaintiff was following the flow of traffic, which was moving very slowly due to
15 heavy traffic and gridlock at the time at the intersection of Bailey Avenue and 230th Street.

16 39. As plaintiff turned with the rest of the slow-moving traffic from Bailey Avenue
17 onto 230th Street on her way to the Major Deegan on-ramp, defendant PAPALLO, who was
18 standing in the street directing traffic, looked inside plaintiff’s car and signaled for plaintiff to pull
over to the side of the ramp to the Deegan Expressway.

19 40. Defendant PAPALLO then walked over to plaintiff’s vehicle and demanded that
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VERIFIED COMPLAINT - 5

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2 she roll down her window. Plaintiff complied,

3 41. Defendant PAPALLO then demanded to know if the car belonged to plaintiff.
4 When plaintiff answered in the affirmative, defendant PAPALLO told plaintiff to give him her
5 license.

6 42. Plaintiff asked, "What did I do wrong?" In response, defendant PAPALLO told
7 plaintiff to wait there and he walked away.

8 43. Plaintiff rolled her window back up as she waited, as it was late November and
9 already getting cold outside.

10 44. Thereafter, defendants CASAZZA and PAPALLO then approached plaintiff's car.
11 Defendant CASAZZA approached on the passenger side of plaintiff's car, and defendant
12 PAPALLO approached on the driver's side.

13 45. Defendant CASAZZA ordered plaintiff to roll her window down, and plaintiff
14 complied.

15 46. Defendant CASAZZA then lunged through the window and grabbed plaintiff's
16 pocketbook off the passenger seat.

17 47. Plaintiff began pulling back on her purse, and defendant CASAZZA then latched
18 on to plaintiff's arm and forcefully began pulling and twisting it.

19 48. Plaintiff was terrified by defendants' conduct – indeed, the events described herein
20 took place just two days after the highly publicized shooting death of Sean Bell, an unarmed
African-American man, killed by NYPD police officers in Queens, New York.

49. With her free hand, plaintiff grabbed her cell phone and called 911 for help.

50. Once plaintiff called 911, defendant CASAZZA then let go of plaintiff's arm;

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2 upon releasing plaintiff's arm from his grasp, defendant CASAZZA gripped the top of the glass of
3 the window, which was still partially open, with both of his hands, and pressed his face into the
4 open window, and bared his teeth at plaintiff.

5 51. Once plaintiff was connected to a 911 operator, she told the operator that an officer
6 had come through her window and that he was grabbing her purse and her arm. Plaintiff, who by
7 this time was utterly petrified, begged the 911 operator to help her and to tell her what to do.

8 52. Upon information and belief, the 911 operator responded that she did not know
9 what to do, nor could she tell plaintiff what to do. Plaintiff, who was by now crying, pleaded for
10 them to please send somebody to help her, and she expressed that she was in fear for her life. The
11 911 operator told plaintiff to remain where she was, and that she would alert dispatch to send
12 somebody.

13 53. Plaintiff spoke with 911 for approximately ten to fifteen minutes. As plaintiff was
14 speaking to 911, defendant CASAZZA's face was still pressed into the open passenger side
15 window of plaintiff's car, and he clearly could hear what plaintiff was saying to the 911 operator.

16 54. As plaintiff was speaking to 911, defendant PAPALLO, who was standing next to
17 plaintiff's driver's side window, could hear plaintiff's conversation with 911 as well.

18 55. Thereafter, another police vehicle arrived at the scene and pulled in front of
19 plaintiff's car. Two officers got out of said police car.

20 56. One of these officers was defendant TAYLOR, and the other was one of the "DOE"
defendants herein.

57. Upon defendant TAYLOR's arrival, defendant CASAZZA released his grip on the
front passenger window of plaintiff's car and walked over to defendant TAYLOR and spoke with

1
2 him.

3 58. After speaking to each other, defendants TAYLOR and CASAZZA came to the
4 driver's side window of plaintiff's car.

5 59. Defendant TAYLOR was holding his nightstick, and as he approached plaintiff's
6 car he was beating his hand with it in a threatening manner.

7 60. Defendant TAYLOR ordered plaintiff to roll down her window, and plaintiff
8 complied.

9 61. Once the window was open, defendant TAYLOR ordered plaintiff to get off the
10 phone and to get out of the car.

11 62. When plaintiff asked, through tears, what she did wrong, defendant TAYLOR
12 refused to answer and merely barked that plaintiff had to get out of the car because he said so.

13 63. Without waiting for plaintiff to step out of the vehicle, and while plaintiff's
14 seatbelt was still on, defendant TAYLOR then punched plaintiff in the chest, grabbed her by her
15 shirt, and viciously and violently began trying to pull plaintiff out of the window of plaintiff's car.

16 64. All of defendants then swarmed around plaintiff's car and began pulling plaintiff
17 out of the vehicle. Defendants' hands were all over plaintiff's body and were pulling plaintiff in
18 several different directions.

19 65. One officer, included in defendants herein, reached in through the passenger side
20 and unlatched plaintiff's seatbelt.

66. Defendants then forcefully and viciously pushed plaintiff's body, pulled plaintiff
out of the car, threw her entire body face down on the ground, and then violently handcuffed her.

67. Defendants' actions caused plaintiff to suffer physical injury and caused her to

VERIFIED COMPLAINT - 8

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2 bleed.

3 68. At least one of defendants herein then drove off in plaintiff's car.

4 69. Defendants then pulled plaintiff up, violently threw her against a car, illegally
5 searched her, and then threw her into the back of a police vehicle, and took her into police custody.

6 70. At all times leading up to and including the arrest of plaintiff by defendants,
7 plaintiff had committed no offenses.

8 71. Defendants intentionally and/or with deliberate indifference to plaintiff's
9 constitutional and civil rights forcibly seized, detained, arrested and imprisoned plaintiff without
10 justification, privilege or probable cause.

11 72. Upon information and belief, defendants, without plaintiff's consent and without
12 probable cause, searched plaintiff's person and possessions, including plaintiff's purses, handbags,
13 and belongings.

14 73. Upon information and belief, defendants, without plaintiff's consent and without
15 probable cause, searched plaintiff's automobile, including the glove compartment and trunk.

16 74. At no time did plaintiff provoke the physical assault on her or offer any resistance.

17 75. Defendants gratuitously used force against plaintiff and used more force than was
18 reasonably necessary to take plaintiff into custody.

19 76. No police officers ever told plaintiff the reason that plaintiff had been stopped in
20 the first place or why she was placed under arrest.

77. Plaintiff was transported to a nearby police precinct by defendants, where
plaintiff was photographed, fingerprinted, and either handcuffed to a rail or confined to a cell
for approximately six (6) hours.

VERIFIED COMPLAINT - 9

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2 78. At the precinct, defendants mocked and taunted plaintiff, and repeatedly demeaned
3 and humiliated her.

4 79. At no time while plaintiff was at the precinct did anyone ever tell her why she had
5 been stopped or explain the reason for her arrest. This was because there was no legally
6 justifiable reason.

7 80. After approximately six (6) hours in the precinct, plaintiff was transported to
8 Bronx Central Booking.

9 81. Plaintiff remained imprisoned at Bronx Central Booking and other detention
10 facilities for approximately three (3) days.

11 82. At no time while plaintiff was incarcerated was she ever told what she had been
12 arrested for, or why she had been pulled over in the first place.

13 83. While plaintiff was unlawfully imprisoned, defendants PAPALLO, CASAZZA,
14 TAYLOR, DONNEL, and DOES 1-5 knowingly relayed false allegations against plaintiff that
15 they had devised to the Bronx County District Attorney's Office, which used that information to
16 draft a criminal court complaint against plaintiff.

17 84. These false and fabricated allegations included, inter alia, that (1) PAPALLO and
18 CASAZZA observed plaintiff make a left turn onto 230th Street from the rightmost lane of
19 Bailey Avenue; (2) upon pulling over plaintiff's vehicle for making a left turn from the
20 rightmost lane, PAPALLO asked plaintiff numerous times for her license and registration,
but that plaintiff repeatedly refused to provide those documents to him; (3) that PAPALLO
told plaintiff that if she did not give PAPALLO her license and registration, that she would
be arrested; (4) that upon PAPALLO telling her this, plaintiff again refused to provide him

VERIFIED COMPLAINT - 10

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2 with her license and registration, closed her car window, and locked her doors; (5) that
3 thereafter, PAPALLO's partner, defendant CASSAZA walked up to the passenger side of
4 plaintiff's vehicle and asked her for her driver's license; (6) that upon being asked by
5 defendant CASSAZA for her driver's license, plaintiff again repeatedly refused to provide
6 it; (7) that CASAZZA told plaintiff that if she did not give the officers her license and
7 registration, that she would be issued a summons; (8) that upon CASAZZA telling her this,
8 plaintiff again refused to provide her license and registration, and that she told CASAZZA
9 that he would have to arrest her; (9) that CASAZZA then reached through the open
10 passenger side window to unlock the passenger side door; (10) that CASAZZA did this
11 because plaintiff was being placed under arrest; (11) that upon CASSAZA reaching into the
12 vehicle, plaintiff grabbed defendant CASAZZA's arm and pushed him away from the
13 controls for the door lock; (12) that plaintiff then proceeded to close the window on
14 defendant CASAZZA's arm by depressing the button on the driver's side door that
15 controlled the front passenger window, thereby causing the front passenger window to pin
16 CASAZZA's arm against the top of the door and trapping CASAZZA's arm in the vehicle;
17 (13) that plaintiff refused to lower the window while CASSAZA's arm was stuck, despite
18 defendants' repeated instructions to her to do so; (14) that at that time plaintiff was under arrest
19 for assaulting CASAZZA and for a Vehicle and Traffic Law infraction of making a left
20 turn from the right lane; (15) that CASAZZA had to pull down on the window and struggle
to get his arm out of the vehicle, after which plaintiff closed the window completely; (16)
upon defendant TAYLOR's arrival at the scene, TAYLOR asked plaintiff to open up the
door several times before she complied; (17) that after the car door was opened, plaintiff

VERIFIED COMPLAINT - 11

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2 refused numerous requests to come out; (18) that plaintiff refused to turn over her license
3 and registration to TAYLOR; (19) that plaintiff was forcibly removed from her car because
4 she was uncooperative and resistant; (20) that plaintiff was not pulled out of the car through
5 the window, but through the open driver's side door; and (21) that upon being forcibly
6 pulled out of her vehicle by defendants, plaintiff flailed her arms, kicked her legs, and
7 resisted arrest.

8 85. These statements were uniformly false and fabricated and designed to ensure
9 that plaintiff was prosecuted for offenses she did not commit, and to secure a conviction
10 against plaintiff at all costs.

11 86. Thereafter, defendant PAPALLO signed the criminal court complaint, which,
12 based on the fabricated information that he and the other defendants had provided to the District
13 Attorney's Office, charged plaintiff with, among other charges, one felony count of Assault in the
14 Second Degree as well as misdemeanor counts of Resisting Arrest, Obstruction of Governmental
15 Administration in the Second Degree, and Harassment in the Second Degree.

16 87. Plaintiff did not commit any of the offenses with which she was charged, nor did
17 she commit any offense or engage in any unlawful conduct on November 27, 2006; nor did any
18 police officer observe plaintiff do so.

19 88. Defendant PAPALLO signed the criminal court complaint, thereby swearing to
20 the veracity of its allegations, under penalty of perjury, despite his knowing that there was no truth
to those allegations whatsoever, that these allegations against plaintiff were false and completely
fabricated, that there was never any legal basis to have detained or arrested plaintiff, and that there
was no legal basis to prosecute her.

VERIFIED COMPLAINT - 12

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2 89. Thereafter, defendant CASAZZA signed a supporting deposition, which, based on
3 the fabricated information that he and the other defendants had provided to the District Attorney's
4 Office, corroborated the false allegations in the criminal court complaint.

5 90. Defendant CASAZZA signed the supporting deposition, thereby swearing to the
6 veracity of the allegations in the criminal court complaint, under penalty of perjury, despite his
7 knowing that there was no truth to those allegations whatsoever, that these allegations against
8 plaintiff were false and completely fabricated, that there was never any legal basis to have
9 detained or arrested plaintiff, and that there was no legal basis to prosecute her.

10 91. All defendants conspired to lodge these false allegations against plaintiff and
11 initiate a prosecution against her for offenses they knew she did not commit.

12 92. Defendants made these false allegations against plaintiff with actual malice, and
13 out of spite and ill will, and with retributive purpose.

14 93. Defendants engaged in the above-described conduct intentionally and/or with
15 deliberate indifference to plaintiff's constitutional and civil rights.

16 94. Defendants' above-described conduct, and pattern of deceit, fabrication,
17 falsification, and suppression of truth was consistent and in keeping with the institutionalized and
18 de facto policies and practices of the New York City Police Department, and specifically the
19 NYPD's 50th Precinct in the Bronx, to which defendants were assigned.

20 95. Thereafter, plaintiff was arraigned on that criminal court complaint under Bronx
County Docket Number 2006BX062704.

96. Plaintiff pleaded not guilty to all counts, and was released on her own
recognizance.

VERIFIED COMPLAINT - 13

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2 97. Plaintiff thereafter was required on several occasions to appear in court to defend
3 against these false criminal charges that had been lodged against her.

4 98. Upon information and belief, during the course of plaintiff's prosecution,
5 defendants signed supporting depositions wherein they averred, under penalty of perjury, the
6 veracity of the allegations contained in the criminal court complaint, despite knowing that the
7 allegations against plaintiff were false and completely fabricated, that there was never any legal
8 basis to have detained or arrested plaintiff, and that there was no legal basis to prosecute her.

9 99. All defendants conspired to lodge these false allegations against plaintiff and
10 initiate a prosecution against her for an offense they knew she did not commit.

11 100. Defendants made these false allegations against plaintiff with actual malice, and
12 out of spite and ill will, and with retributive purpose.

13 101. Defendants engaged in the above-described conduct intentionally and/or with
14 deliberate indifference to plaintiff's constitutional and civil rights.

15 **PLAINTIFF'S TRIAL**

16 102. On or about December 15, 2008, after nearly two years of prosecution, the
17 criminal case against plaintiff proceeded to trial before the Honorable Peter Benitez and a jury.

18 103. At any point prior to that date, had any of defendants revealed to the court or the
19 prosecution that defendants had fabricated evidence, falsified testimony, cultivated witnesses to
20 testify falsely, and manufactured out of whole cloth the case against plaintiff, the charges
against plaintiff would have been dropped and the accusatory instrument dismissed.

104. Instead, defendants maintained their pact of silence, continued to suppress the
truth, and perpetuated their falsified version of events.

VERIFIED COMPLAINT - 14

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2 105. At trial, defendant PAPALLO repeated, under oath, the falsehoods that he
3 had told the District Attorney in order to guarantee plaintiff's criminal prosecution,
4 including, inter alia, that: (1) he observed plaintiff make a left turn onto 230th Street from
5 the rightmost lane of Bailey Avenue; (2) upon pulling over plaintiff's vehicle for making a
6 left turn from the rightmost lane, PAPALLO asked plaintiff numerous times for her license
7 and registration, but that plaintiff repeatedly refused to provide those documents to him; (3)
8 that PAPALLO told plaintiff that if she did not give PAPALLO her license and registration,
9 that she would be arrested; (4) that upon PAPALLO telling her this, plaintiff again refused
10 to provide him with her license and registration, closed her car window, and locked her
11 doors; (5) that thereafter, PAPALLO's partner, defendant CASSAZA walked up to the
12 passenger side of plaintiff's vehicle and asked her for her driver's license; (6) that upon
13 being asked by defendant CASSAZA for her driver's license, plaintiff again refused to
14 provide it; (7) that defendant CASAZZA then reached inside plaintiff's vehicle through the
15 partially open passenger side window and attempted to open the door; (8) that upon
16 CASAZZA doing so, plaintiff closed the window on CASSAZA's arm; (9) that CASAZZA
17 had to struggle to get his arm out; and (9) that at no point did PAPALLO or CASAZZA
18 yell at plaintiff.

19 106. This testimony was false and fabricated and manufactured to secure a conviction
20 against plaintiff at all costs.

 107. In addition to the foregoing, defendant PAPALLO repeated at trial more of the
falsehoods that he had told the District Attorney, including, inter alia, that: (1) upon
defendant TAYLOR's arrival at the scene, TAYLOR asked plaintiff to open up the door

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2 several times; (2) that after the car door was opened, plaintiff refused numerous requests to
3 come out; (3) that defendant TAYLOR had to struggle with her to remove the seatbelt and
4 had to forcibly remove her because plaintiff was uncooperative and resistant; and (4) that
5 defendants PAPALLO and CASAZZA did not participate in forcibly removing plaintiff
6 from the car and placing her under arrest and in handcuffs.

7 108. This testimony was false and fabricated and manufactured to secure a conviction
8 against plaintiff at all costs.

9 109. At trial, defendant CASAZZA repeated, under oath, the falsehoods that he
10 had told the District Attorney in order to guarantee plaintiff's criminal prosecution,
11 including, inter alia, that: (1) he observed plaintiff make a left turn onto 230th Street from
12 the rightmost lane of Bailey Avenue; (2) that thereafter plaintiff refused to give him and
13 PAPALLO her license and registration; (3) that CASAZZA told plaintiff that if she did not
14 give the officers her license and registration, that she would be issued a summons; (4) that
15 upon CASAZZA telling her this, plaintiff again refused to provide her license and
16 registration, and that she told CASAZZA that he would have to arrest her; (5) that
17 CASAZZA then reached through the open passenger side window to unlock the passenger
18 side door; (6) that CASAZZA did this because plaintiff was being placed under arrest; (7)
19 that upon CASSAZA reaching into the vehicle, plaintiff grabbed defendant CASAZZA's
20 arm and pushed him away from the controls for the door lock; (8) that plaintiff then
proceeded to close the window on defendant CASAZZA's arm by depressing the button on
the driver's side door that controlled the front passenger window, thereby causing the front
passenger window to pin CASAZZA's arm against the top of the door and trapping

VERIFIED COMPLAINT - 16

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2 CASAZZA's arm in the vehicle; (9) that at that time plaintiff was under arrest for
3 assaulting CASAZZA and for a Vehicle and Traffic Law infraction of making a left turn
4 from the right lane; (10) that CASAZZA had to pull down on the window and struggle to
5 get his arm out of the vehicle, after which plaintiff closed the window completely; (11) that
6 at no time during his interaction with plaintiff did CASAZZA ever scream at plaintiff; (12)
7 that at no time did CASAZZA ever physically grab plaintiff or twist her arm; (13) that
8 when defendant TAYLOR arrived at the scene, he asked plaintiff to step out of her vehicle,
9 but plaintiff refused to do so; and (14) that plaintiff was not pulled out of the car through
10 the window, but through the open driver's side door.

11 110. This testimony was false and fabricated and manufactured to secure a conviction
12 against plaintiff at all costs.

13 111. At trial, defendant TAYLOR repeated, under oath, the falsehoods that he had
14 told the District Attorney in order to ensure plaintiff's criminal prosecution, including, inter
15 alia, that: (1) plaintiff refused to get out of her car; (2) that plaintiff refused to turn over her
16 license and registration; and (3) that plaintiff resisted getting out of the car; (4) that upon
17 being forcibly pulled out of her vehicle by defendants, plaintiff flailed her arms, kicked her
18 legs, and resisted arrest

19 112. This testimony was false and fabricated and manufactured to secure a conviction
20 against plaintiff at all costs.

113. Upon information and belief, defendants consciously disregarded known and
excessive risks to plaintiff's liberty and welfare and engaged in a pattern of behavior and
conduct in furtherance of securing and sustaining an unjust conviction against plaintiff,

VERIFIED COMPLAINT - 17

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2 including but not limited to engaging in a pattern and course of conduct of deceit whereby these
3 defendants failed to disclose material exculpatory and/or impeaching evidence before, during,
4 and after the trial in plaintiff's criminal case, they fabricated evidence, and testified falsely at
5 trial.

6 114. By doing the aforementioned, defendants perjured themselves, suborned
7 perjurious testimony, fabricated evidence against plaintiff, and suppressed the truth.

8 115. Defendants' above-described conduct, and pattern of deceit, fabrication,
9 falsification, and suppression of truth was consistent and in keeping with the institutionalized and
10 de facto policies and practices of the New York City Police Department, and specifically the
11 NYPD's 50th Precinct in the Bronx, to which defendants were assigned.

12 116. At the conclusion of all evidence, the court submitted to the jury Assault in the
13 Third Degree; Attempted Assault in the Third Degree (as a lesser included offense); Resisting
14 Arrest; Obstructing Governmental Administration in the Second Degree; and Harassment in the
15 Second Degree.

16 117. The jury found plaintiff not guilty on the counts of assault, attempted assault, and
17 harassment, but convicted her on the counts of resisting arrest and obstructing governmental
18 administration.

19 118. On March 3, 2009, the court sentenced plaintiff to a conditional discharge.

20 **PLAINTIFF'S APPEAL**

119. Plaintiff thereafter appealed her conviction.

120. On or about April 8, 2014, the New York State Court of Appeals reversed
plaintiff's criminal convictions and dismissed the accusatory instrument against her.

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2 **DAMAGES**

3 121. As a result of the foregoing, plaintiff sustained, inter alia, loss of earnings, loss of
4 enjoyment of life, loss of liberty, emotional distress, mental anguish, embarrassment and
5 humiliation, shame, indignity, damage to reputation, loss of property, loss of use and enjoyment of
6 her property, incurred monetary costs, economic loss, and deprivation of her constitutional rights.

7 122. The amount of damages sought in this action exceeds the jurisdictional limits of all
8 lower Courts that might otherwise have jurisdiction.

9 **CLAIM FOR RELIEF AGAINST ALL DEFENDANTS**

10 **(42 U.S.C. § 1983 based on Denial of Fair Trial /Procedural and Substantive Due Process)**

11 123. Plaintiff repeats and re-alleges each and every allegation set forth above as though fully
12 set forth at length herein.

13 124. By the conduct and actions described above, defendants while engaged in under the
14 color of state law, conspired to interfere with and violate rights secured to plaintiff by the Constitution
15 of the United States in violation of 42 U.S.C. § 1983, including, but not limited to, plaintiff's Fourth
16 and Fourteenth Amendment rights.

17 125. Defendants, through the actions alleged above, consciously disregarded known and
18 excessive risks to plaintiff's liberty and welfare and engaged in a deliberate and unjustified effort to
19 manufacture guilt against plaintiff in furtherance of a plan to secure and sustain a conviction against
20 plaintiff at all costs.

126. This included a course of conduct and pattern of behavior whereby defendants, inter
alia, created and fabricated evidence to create the appearance of probable cause to believe that plaintiff
had committed offenses and/or crimes, intentionally and maliciously concealed material exculpatory
evidence, committed perjury and suborned perjurious testimony, concealed the truth and deceived the
court and counsel, and perpetrated a fraud on the court.

VERIFIED COMPLAINT - 19

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2 127. In furtherance of this course of conduct and pattern of behavior, defendants failed to
3 disclose material exculpatory and/or impeaching evidence before, during, and after plaintiff's trial,
4 fabricated evidence, concealed the truth, committed perjury, suborned perjury, and deceived the court
5 and counsel, and perpetrated a fraud on the court.

6 128. That such willful and wanton conduct by defendants deprived plaintiff of liberty and of
7 a fair trial, and constituted both a substantive and procedural due process violation under the Fourteenth
8 Amendment of the U.S. Constitution.

9 129. Defendants' conduct precipitated and caused the sequence of events that ultimately
10 resulted in the plaintiff's arrest, prosecution, and criminal conviction for offenses of which she was
11 innocent.

12 130. Defendants' conduct in this regard was so egregious and outrageous as to shock the
13 conscience.

14 131. That as a result of the foregoing, plaintiff was severely and seriously injured, both
15 bodily and mentally, suffered a loss of liberty, a loss of enjoyment of life, and suffered economic loss
16 and other damages.

17 132. The defendants are sued in their individual and official capacities.

18 133. The amount of damages sought in this action exceeds the jurisdictional limits of all
19 lower Courts that might otherwise have jurisdiction over this action.

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PRAYER FOR RELIEF

3 **WHEREFORE**, plaintiff demands the following relief jointly and severally against all the

4 defendants:

- 5 a. Compensatory damages in an amount to be determined at trial;
- 6 b. Punitive damages in an amount to be determined at trial;
- 7 c. Attorney's fees pursuant to 42 U.S.C. § 1988;
- 8 d. An award of plaintiff's costs of suit;
- 9 e. Pre-judgment and post-judgment interest;
- f. Such other relief as this Court deems just and proper.

10 Dated: Mineola, New York

11 March 26, 2017

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13 Respectfully submitted,

14 FINZ & FINZ, P.C.

15 By: Ameer Benno

16 Ameer Benno

17 410 E. Jericho Turnpike

18 Mineola, NY 11501

19 Tel.: (516) 433-3000

20 abenno@FinzFirm.com

Attorneys for Plaintiff

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2 **ATTORNEY'S VERIFICATION**

3 The undersigned, an attorney admitted to practice in the State of New York, hereby
4 affirms, that the undersigned has read the foregoing Verified Complaint, knows the contents
5 thereof; that the same is true to affirmant's own knowledge, except as to the matters therein
6 stated to be alleged on information and belief, and as to those matters affirmant believes them
to be true.

7 The undersigned further states that the reason this affirmation is made by the
8 undersigned and not plaintiff is that plaintiff resides in a county other than that in which
9 affirmant maintains his offices.

10 The grounds of affirmant's belief as to all matters not stated to be upon affirmant's
knowledge are as follows: Investigations and the contents of affirmant's file.

11 The undersigned affirms that the foregoing statements are true, under penalty of perjury.

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13 Dated: Mineola, New York
14 March 26, 2017

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16 Ameer Benno
AMEER BENNO

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